

25VECV04045 25VECV04045

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-17

Motion: DEFENDANT'S DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT WITH MOTION TO STRIKE

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Case Number: 25VECV04045 Hearing Date: July 17, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

MASOUD RADPARVAR, an individual; SINA RADPARVAR, an individual; MARYAM SIMANI, an individual; MEHRAN SARRAFZADEH, an individual,

Plaintiffs,

vs.

SAEED

RADPARVAR, an individual; and DOES 1 to 50, inclusive,

Defendants.

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CASE

NO: 25VECV04045

[TENTATIVE]

ORDER RE: DEFENDANT'S DEMURRER TO PLAINTIFFS'

SECOND AMENDED COMPLAINT WITH MOTION TO STRIKE

Dept.

I

DATE:

JULY 17, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: JULY 18, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On July 18, 2025, Plaintiffs Masoud Radparvar ("Masoud"), Sina Radparvar ("Sina"), Maryam Simani ("Simani"), and Mehran Sarrafzadeh ("Sarrafzadeh") (collectively "Plaintiffs") filed a complaint against Defendants Saeed Radparvar ("Defendant") and Does 1 to 50 alleging eight causes of action: (1) breach of contract; (2) breach of fiduciary duty; (3) fraudulent misrepresentation; (4) unjust enrichment; (5) declaratory relief; (6) accounting; (7) fraud; and (8) conversion.

On October 23, 2025, Plaintiffs filed their first amended complaint ("FAC") alleging eight causes of action: (1) breach of contract; (2) breach of fiduciary duty; (3) fraudulent misrepresentation; (4) equitable lien; (5) declaratory relief; (6) accounting; (7) fraud; and (8) conversion.

On April 16, 2026, Plaintiffs filed their second amended complaint ("SAC") alleging four causes of action: (1) breach of contract; (2) breach of fiduciary duty; (3) declaratory relief; and (4) accounting.

On May 18, 2026, Defendant filed the instant demurrer to and motion to strike portions of Plaintiffs' SAC.

On June 23, 2026, Plaintiffs filed their oppositions.

On July 1, 2026, Defendant filed his reply.

II.

LEGAL

STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be

allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d 311, 318.)

Before filing a motion to

strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Supplemental Brief

As a preliminary matter, the Court disregards Plaintiffs' supplemental brief filed on July 14, 2026, filed without leave of court. (See CCP § 1005.)

Meet and Confer

The parties contend that they discussed the instant demurrer and motion to strike by telephone. (Farivar Decl. at ¶¶ 9 and 13.) However, the parties were unable to reach an agreement. (Ibid.) Accordingly, Defendant satisfies the meet and confer requirements of CCP §§ 430.41(a) and 435.5(a).

Requests for Judicial Notice

As a preliminary matter, Defendant's May 18, 2026, requests for judicial notice are denied as to Exhs. A through E. (See May 18, 2026, Requests for Judicial Notice.) Judicial notice of the Court's own records is unnecessary and redundant since the Court can always review its own case file. However, Defendant's request for judicial notice of a copy of the records of the California Secretary of State reflecting the entity status of Raha Enterprises, LLC ("Raha") is granted pursuant to Cal. Evid. Code § 452(h).

Next,

Plaintiffs' June 23, 2026, request for judicial notice of Raha's application for registration with the California Secretary of State is granted pursuant to Evid. Code § 452(h). Judicial notice of Raha's federal supplemental information is also granted. Evid. Code § 452(h).

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First Cause of
Action – Breach of Contract

First, Defendant

demurs to Plaintiffs' first cause of action for breach of contract on the grounds that this action is a "sham pleading," pursuant to *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, because the SAC "now retrofits a written 'Operating Agreement' never before mentioned." (Demurrer at ii:5-14.) . The sham pleading doctrine states that "[i]f a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations." (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151.) "Courts routinely apply this rule to reject post-demurrer amendments that attempt to cure a legal deficiency by rewriting the facts." (Demurrer at 5:15-23 [citing *Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743].) Here, in both Plaintiffs' original complaint and subsequent FAC, Plaintiffs allege a joint venture partnership for profit between themselves and Defendant without mention of an operating agreement. (See Complaint at ¶ 12; see also FAC at ¶¶ 12 and 14.) "After the Court's March 27, 2026 ruling that the oral, indefinite-duration theory was statute-of-frauds-barred, Plaintiffs suddenly 'discover' a twenty-year-old, unsigned operating agreement . . ." (Demurrer at 5:24-6:7.)

In opposition, Plaintiffs argue that

they circumvent the sham pleading doctrine by "explain[ing] the changes." (See Opposition at p. 7 [citing *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-426.]) Plaintiffs argue that they adequately explained the requisite changes because "they located what they thought was an otherwise lost Operating Agreement for Raha." (Opposition at 7:14-26.) "Plaintiffs had previously provided the unsigned Operating Agreement to Defendant in discovery prior to the hearing on the Demurrer to the First Amended Complaint on March 27, 2026, and before Plaintiffs had any knowledge of what this Court's ruling would be on that Demurrer." (*Ibid.*) "Plaintiffs also referred to that Operating Agreement in their oral arguments in opposition to the Demurrer to the First Amended Complaint." (*Ibid.*) However, Plaintiffs fail to adequately explain the direct contradictions to the Operating Agreement in their original and first amended complaints. Specifically, Plaintiffs previously alleged only an oral agreement that Raha's profits would be apportioned amongst the partners indefinitely and never referenced a written agreement. This does not meet the evidentiary standard of *Deveny, supra*.

Accordingly, the Court finds that

Plaintiffs' SAC violates the sham pleading doctrine by incorporating the alleged written Operating Agreement. Defendant's demurrer to Plaintiff's first cause of action for breach of contract is sustained on these grounds.

Furthermore, the Operating Agreement still violates the statute of frauds. Civ. Code § 1624(a)(1) requires that an agreement that by its terms is not to be performed within a year from the making thereof must be in writing and subscribed by the party to be charged. (See Civ. Code § 1624(a)(1).) Here, the alleged Operating Agreement is "perpetual" yet unsigned. (See SAC Exh. 1.)

In opposition, Plaintiffs argue that Defendant is estopped from raising the statute of frauds because of his alleged conduct which created an enforceable contract between the parties. (Opposition at 8:15-9:25.) However, to rely on estoppel, Plaintiffs must plead unconscionable injury or unjust enrichment. (See *Monarco v. Lo Greco* (1950) 35 Cal.2d 621, 623-624.) As Defendants note, the SAC pleads neither.

Additionally, Plaintiffs have been given multiple opportunities to cure their defects for the breach of contract claim. Plaintiffs fail to do so, and Defendant's demurrer to Plaintiff's first cause of action is therefore sustained without leave to amend.

Second Cause of
Action – Breach of Fiduciary Duty

Next, to state a cause of action for breach of fiduciary duty, a plaintiff must allege ultimate facts showing (1) the existence of a fiduciary relationship; (2) breach of a fiduciary duty; and (3) damages caused by the breach. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.) Here, the SAC relies on the written operating agreement to establish a breach of fiduciary duty. (See SAC at ¶¶ 60-64.) However, as discussed supra, the Operating Agreement is barred by the statute of frauds. While Plaintiffs argue that they properly plead partnership in an investment, Plaintiffs do not argue against the fact that such partnership is only alleged through the unsigned Operating Agreement. (See Opposition at pp. 13-14.)

Defendant's demurrer to Plaintiffs' second cause of action for breach of fiduciary duty is sustained without leave

to amend.

Third and Fourth Causes of Action – Declaratory Relief and Accounting

Next, a demurrer
to a cause of action for declaratory relief is properly sustained when it is
superfluous or duplicative of another cause of action. (General of America
Ins. Co. v. Lilly (1958) 258 Cal.App.2d 465, 470.) As Defendant notes,
“[b]ecause the alleged Operating Agreement creates no enforceable legal rights,
there is nothing for the Court to declare.” (Demurrer at 11:3-14.)

In opposition, Plaintiffs argue that
this action survives because it arises from their fourth cause of action for
accounting. (See Opposition at pp. 14-15.) A cause of action for
accounting arises from a fiduciary relationship. (See Teselle v. McLoughlin (2009)
173 Cal.App.4th 156, 179-180.) Once again, Plaintiffs fail to properly allege,
in their original complaint, first amended complaint, and second amended
complaint, a breach of fiduciary duty. As discussed supra, Plaintiffs
cannot rely on an unsigned operating agreement. Furthermore, Plaintiffs fail to
plead unconscionable injury giving rise to estoppel.

Based on the foregoing, Defendant's
demurrer to Plaintiffs' third and fourth causes of action for declaratory
relief and accounting are sustained without leave to amend.

Motion to Strike

Defendant's
demurrer is sustained in its entirety. Accordingly, the motion to strike is
moot.

Motion for an Undertaking

On its own motion,
the Court takes Defendant's Motion for Order Requiring an Undertaking off
calendar as moot considering its ruling on Defendant's Demurrer.

IV. CONCLUSION

Defendant's

demurrer is SUSTAINED in its entirety without leave to amend.

Defendant's

motion to strike is MOOT.

Plaintiff's

complaint is dismissed with prejudice.

Moving

party to give notice.

Dated:

July _____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior

Court